



# SOFTWARE LICENSE AGREEMENT

This Software License Agreement ("**Agreement**") is entered into by and between PocketSomm Oy, brand name sommify, residing at Kadetintie 3 C 29, 00330 Helsinki, Finland ("**Licensor**") and the Undersigned Party ("**Licensee**").

This Agreement shall be deemed effective upon signature by both parties ("**Effective Date**").

The purpose of this Agreement is to facilitate the use of sommify's B2B sales solution "**sommify platform**" by the Licensee.

## 1. Software

1.1 The Licensor hereby grants to the Licensee, and the Licensee hereby accepts from the Licensor, a license to use the following software:

- a. sommify platform.

## 2. Price

2.1 The price for the user accounts shall be seventy (70,00) euros per month per account. VAT non-inclusive.

## 3. Payment Terms

3.1 Payment shall be made as follows:

- a. The first invoicing period begins on the date the Licensee is granted access to sommify platform.
- b. The first invoicing period continues until the end of that calendar month. Thereafter, invoicing periods will be on a monthly basis.
  - i. The fee for the first invoicing period will be prorated based on the monthly fee and calculated from the date on which access to sommify platform was granted.
- c. The Licensor will invoice the Licensee at the beginning of each invoicing period.
- d. Credit card payments shall be subject to all applicable bank fees, which shall be borne by the Licensee.

## 4. Access and Usage

4.1 Information and tutorials regarding the use of sommify platform are available on the Licensor's website (<https://sommify.ai/>).

4.2 The Licensee shall provide the Licensor with a list that contains the email address that shall be registered as user accounts.

- a. The number of user accounts shall be determined by the number of registered email addresses at the start of each invoicing period.
- b. The Licensee shall have the right to remove user accounts.
  - i. In case of removal, the removed user accounts shall not be included in the following invoicing period.
  - ii. No refund shall be made if the removal happens during the invoicing period.
- c. The Licensee shall have the right to add user accounts at any point by notification.



- i. The added user accounts shall be invoiced at the start of the next invoicing period as follows:
  1. Each added user account shall be invoiced for the whole month during which they have been registered.
  2. These user accounts shall be invoiced normally when the new invoicing period starts.

## 5. Security, Data Protection and Confidentiality

5.1 Both Parties agree to comply with all applicable data protection laws and regulations, including but not limited to the General Data Protection Regulation (GDPR) (EU) 2016/679, and any other relevant data protection legislation applicable to the processing of personal data in connection with this agreement. Each Party shall implement appropriate technical and organizational measures to ensure the security and confidentiality of personal data processed under this agreement, and shall promptly inform the other Party of any known or suspected breaches of data security. Furthermore, each Party agrees to cooperate fully with the other Party in responding to requests from data subjects exercising their rights under applicable data protection laws.

5.2 The Licensor shall not share or use any of the Licensee's data on the wines in the Licensee's catalog, including, but not limited to, price, stock level, alcohol percentage, grape variety, and region of origin, for purposes other than fulfilling the responsibilities stipulated in this Agreement.

## 6. Limitation of Liability

6.1 In no event shall either party be liable for any indirect, consequential, or incidental damages arising out of or related to this Agreement.

6.2 The Licensor shall not be liable for any loss, damage, or expense arising out of or in connection with any claim made by a third party (including, without limitation, the Licensee's customers) resulting from the use of sommify platform.

6.3 The Licensor shall not be liable for any loss or damage arising from any errors, inaccuracies, or omissions which might arise during usage of sommify platform.

## 7. Non-compete

7.1 During the term of this Agreement and for a period of forty-eight (48) months from the Effective Date, the Licensee shall refrain from:

- a. internally developing software that is substantially similar to and competes with sommify platform;
- b. commissioning or engaging a third party to develop software that is substantially similar to and competes with sommify platform; or
- c. replacing sommify platform with software internally developed by or specifically commissioned for the Licensee that is substantially similar to and competes with sommify platform.

7.2 In case of breach of this non-compete, The Licensee shall be liable for damages in the amount of monetary gain resulting from the breach.

7.3 Similarity is defined by the software having at least two (2) of the three (3) key features:

1. automating offer creation for wine sales;
2. generating wine sales materials;
3. helping the customers of the Licensee to sell wine.

7.4 The non-compete shall not apply to:



- i. products or solutions with similar features or functionality that are not specifically related to wine, or
- ii. products or solutions with similar features or functionality that are procured or licensed from third-party providers or otherwise available on the open market.

## 8. Governing Law

8.1 This Agreement shall be governed by and construed in accordance with the laws of Finland.

8.2 Any disputes arising out of or in connection with this Agreement shall be resolved as follows:

- a. The first instance of dispute resolution shall be good faith negotiations between the parties.
- b. If the parties are unable to resolve the dispute within thirty (30) days, the parties shall mutually appoint a single impartial arbitrator to hear both sides and produce an award.
  - i. The cost of the arbitration shall be shared between the parties equally.
  - ii. The arbitration shall be advisory in nature and shall not create a legally binding obligation. However, the parties acknowledge that the arbitrator's determination shall carry significant persuasive authority and shall be respected in good faith by both parties.
- c. If the previous procedures yield no resolution, the dispute shall be submitted to the courts located in Helsinki, Finland that shall constitute the sole and exclusive forum for the resolution of any and all disputes arising out of or in connection with this Agreement.

## 9. Term and Termination

9.1 This Agreement shall commence and be deemed effective as of the Effective Date.

9.2 This Agreement shall continue in full force and effect for an indefinite term unless and until terminated pursuant to the termination provisions herein.

9.3 Either party may terminate this Agreement at any point with immediate effect by written notice.

9.4 In the event of expiry or termination of this Agreement for any reason, neither of the Parties shall be released from the obligation to make payment of any amount accrued up to the effective date of termination.

9.5 If this Agreement is terminated during an invoicing period, the Licensee shall be entitled to a refund of the portion of the invoiced amount corresponding to the period from the date of termination until the end of the relevant invoicing period, calculated on a pro rata basis using the applicable monthly fee.

## 10. Entire Agreement

10.1 This Agreement constitutes the entire understanding between the parties with respect to the subject matter hereof and supersedes all prior agreements and understandings, whether written or oral, relating to such subject matter.

## 11. Final Provisions

11.1 This Agreement is valid and effective upon signature of both parties.

11.2 The Parties represent that this Agreement is their sincere and serious will and that they consider particular stipulations of this Agreement binding and understood to the full extent.



**sommify**

**Licensee**

\_\_\_\_\_  
Jacob Pichna

CEO

Date: \_\_\_\_\_

\_\_\_\_\_

Date: \_\_\_\_\_